



PRIVATE & CONFIDENTIAL

07 July 2026

Monika Raghuwanshi
23/68 Bellevue Terrace
St Lucia, QLD 4067

monikarag22@gmail.com

Dear Monika

I am delighted to offer you employment within the Eagers Automotive Limited Group of Companies (**Eagers Automotive Group**) in the position of Business Intelligence Architect. Your employer is APE Cars Mgmt (**Company**) and the terms of your employment are set out in the attached Employment Agreement.

To confirm your acceptance of this offer, please *click to Accept* the Agreement electronically within seven days from the date of this letter after which time the offer will lapse unless otherwise agreed.

As discussed, outlined in the attached Employment Agreement we expect that you will commence your employment and join the Eagers Automotive team on 24 August 2026 subject to you accepting this offer and:

- a) providing us with satisfactory evidence of your eligibility to work in Australia (e.g. Australian Passport, birth certificate, or work permit/visa and international passport);
- b) providing us with a copy of your driver's licence including evidence that it is current and valid, if requested by us;
- c) providing us with copies of any applicable qualifications and/or references referred to in your application and that relate to this role; and
- d) undertaking and passing to the satisfaction of the Company any Australian criminal history checks, credit checks and/or any pre-employment medicals / testing as required by the Company for this role.

Eagers Automotive is the oldest and largest automotive retailer in Australia, operating across Australia and in New Zealand. Our values of Integrity, Inclusiveness, Agility and Owners Mindset sit at the centre of all our operations and business decisions to ensure the success of the business, for our employees, customers and shareholders. You will be joining our Company at a very exciting time - a time where you will be able to contribute to the transformation of our business, as we work through not just the challenges of today but also as we work as a team to build the organisation we need to be for the future.

Monika, I look forward to welcoming you to the Company and the broader Eagers Automotive team. I am confident that your decision to join our team will prove to be extremely rewarding for you on many levels.

If you have any questions regarding the terms offered, please feel free to contact myself directly via rcox@eagersautomotive.com.au or our People and Safety Team via HR@eagersautomotive.com.au.

Yours sincerely

Ryan Cox

Eagers Automotive Limited

Attached

- Employment Agreement

Employment Agreement

1 Parties

This Agreement is made between the Employee and the Employing Entity (**Company**) specified in the Schedule. The Company is part of the Eagers Automotive Group.

2 Commencement date

Subject to you satisfying the Conditions, your employment with the Company under the terms of this Agreement will commence on the Commencement Date outlined in the Schedule, or any other date the parties agree in writing.

3 Conditions

Pre-employment checks

- 3.1 The Company may conduct reference and other background checks (such as a criminal history check and credit check) and may require you to complete a pre-employment medical test. If the Company is not satisfied with the results of any of these checks or tests, it may terminate your employment on seven days' notice or by payment in lieu of such notice.

Licences and qualifications

- 3.2 At any time during your employment, the Company may require you to provide a copy of your driver's licence and any other licences, clearances or qualifications required for your role. If you fail to provide a copy of the licences, clearances and/or qualifications required by the Company, and those licences, clearances or qualifications are a requirement of you performing your role, the Company may terminate your employment by giving you the statutory minimum notice period or paying you in lieu of notice.

Right to work in Australia

- 3.3 Your employment is conditional on you being legally entitled to be employed by the Company in Australia. If required by the Company, you agree to provide documentary evidence of your legal entitlement to be employed by the Company in Australia. If at any time after your employment commences you are not legally entitled to be employed by the Company in Australia, you must notify the Company immediately and the Company may be legally required to terminate your employment by making a payment to you in lieu of the statutory minimum notice period and your employment will cease with immediate effect.

Withdrawal of Offer

- 3.4 You acknowledge that notwithstanding any other terms of this Agreement, the Company reserves the right to withdraw this offer of employment prior to the Commencement Date or may immediately terminate your employment after the Commencement Date, in the event any of the Conditions are not met.

4 Position, Employment Status and Reporting Line

- 4.1 You will be employed in the Position outlined in the Schedule, with the Employment Status outlined in the Schedule. The Company may require you to perform other duties from time to time in accordance with your skills and experience.

- 4.2 If a requirement to perform work for any other member of the Eagers Automotive Group (**Group Company**) this will be discussed with you prior to any changes taking effect.
- 4.3 You will report to the Manager outlined in the Schedule or any other person nominated by the Company from time to time.

5 Location

- 5.1 Your usual place of work will be the Location outlined in the Schedule, or at any other location nominated by the Company from time to time in accordance with its business needs. The Company will consult with you and take into account your personal circumstances before making any such change and will provide you with reasonable notice of any such change.
- 5.2 You may be required to travel as reasonably necessary for the performance of your duties or to undertake further training.
- 5.3 The Company may at its discretion permit you to work remotely, including working from home. You acknowledge and agree that you are not entitled to reimbursement or any payment for expenses related to working from home, including office equipment and utilities costs. The terms and conditions of your employment as set out in this Agreement will continue to apply during any period of working remotely.

6 Probationary Period

If your employment is subject to the Probationary Period, this will be outlined in the Schedule. During the probationary period, either you or the Company may terminate your employment by providing one week's notice in writing to the other party. The Company may pay you in lieu of notice. This right is in addition to any other rights of the Company to terminate your employment under this Agreement.

7 Hours of Work

- 7.1 Your normal Hours of Work are outlined in the Schedule however you may be required to work reasonable additional hours to meet the requirements of the role.
- 7.2 Your rostering arrangement will be communicated to you.
- 7.3 Your rostered hours may be varied from time to time to meet the operational requirements of the Company. You will be provided with reasonable notice of any changes to your rostered hours.
- 7.4 You are required to complete your own time record. Completing time records on behalf of another employee or permitting another employee to do so on your behalf is considered misconduct and may result in disciplinary action up to and including dismissal.

8 Continuing terms and conditions of employment

The title of your position, your duties, reporting lines, hours of work and work location may be varied by the Company to meet its business or operational needs from time to time. Irrespective of any such variations, your employment will continue to be subject to the terms of this Agreement, including clauses *Termination of Employment with notice* and *Summary Dismissal*, unless varied or replaced by an agreement in writing.

9 Suspension

If the Company forms the view that your conduct or performance may warrant serious disciplinary action (including termination of employment) or has concerns about your fitness

for work or capacity, the Company may suspend you from duty on full pay or direct you to perform work in a different position, pending the outcome of an investigation or resolution of the Company's concerns.

10 Employee Duties and Obligations

10.1 By entering into this Agreement, you:

- a) agree that representations made by you in relation to your skills, qualifications, ability and Australian work rights are true and correct;
- b) confirm that you are not aware of any other restriction or restraint which may affect your performance in your role;
- c) agree that, where requested, you will provide the Company with requested documents which allow the Company to exercise all legal obligations in relation to your employment;
- d) acknowledge and agree, if operating a motor vehicle is an inherent requirement of your role:
 - (i) that your employment is subject to you holding and maintaining a valid driver's licence that enables you to operate vehicles as required in the course of your employment; and
 - (ii) to notify the Company if you no longer hold such licence, for any length of time.
- e) agree that, where requested by the Company, you will utilise your personal device to download and use an authorised authenticator application for the purpose of gaining secure access to Company operating systems; and
- f) consent to the Company communicating with you via your personal device (by way of sms, phone call or otherwise), at a reasonable time and in a reasonable manner in relation to Company and employment matters, including providing access to Company operating systems.

10.2 Throughout the term of your employment, you agree to:

- (a) give the whole of your working time, ability and attention to the business and affairs of the Company and the Eagers Automotive Group;
- (b) at all times serve the Company and the Eagers Automotive Group faithfully, honestly and diligently, and act in accordance with the Company's values;
- (c) perform the duties and responsibilities that the Company or a Group Company assigns to you to the best of your ability, skill and knowledge;
- (d) comply with all lawful and reasonable directions given to you from time to time by the Company or a Group Company;
- (e) assume and properly exercise any delegated authority that has been vested in, or assigned to you, by the Company;
- (f) exhibit a professional and courteous attitude when dealing with the Company, the Eagers Automotive Group, and employees, customers, suppliers and other stakeholders of the Company and the Eagers Automotive Group;
- (g) comply with all laws (including without limitation the *Competition and Consumer Act 2010* (Cth) and *Privacy Act 1988* (Cth)), and rules and regulations applying to your role, including with respect to vehicle manufacturers and distributors;

- (h) protect the property of the Company and the Eagers Automotive Group and immediately notify the Company of any theft, loss, damage or neglect of such property;
- (i) if applicable to your role, obtain and maintain any accreditation and/or approvals required in the performance of your role, including with manufacturers and/or financiers. You acknowledge and agree that a failure to obtain and maintain such accreditation and/or approval may mean you are unable to undertake the inherent requirements of your role; and
- (j) act in the best interests of the Company and the Eagers Automotive Group at all times.

11 Conflict of Interest Obligations

11.1 During your employment:

- (a) you must obtain the written permission of the Company prior to investing personal monies, being engaged, concerned or involved in, obtaining an interest in or establishing any other business in competition with or of a similar nature to any business carried on by the Company or a Group Company. However, you may hold less than 5% of the issued capital of any company whose shares are listed on a recognised stock exchange without Company approval;
- (b) you must notify the Dealer Principal/General Manager prior to being employed by any other employer, or being engaged in any other business so that any impact on your current role can be assessed and/or any conflict of interest can be identified; and
- (c) any activities that you undertake during or outside your working hours (including activity outlined in (b) above) must not conflict with the obligations that you owe to the Company or the Eagers Automotive Group.

11.2 If you become aware of a real or potential conflict between your personal interests and the interests of the Company or the Eagers Automotive Group, you must complete a 'Notification of Potential Conflict of Interest Declaration' form and submit it to your Manager. The Company will assess any real or potential conflict and instruct you accordingly. Where the conflict of interest cannot reasonably be overcome, termination of your employment may need to be considered.

11.3 A conflict of interest may include, but is not limited to: commencing work for a competitor company, commencing or engaging in the operation of a business in competition with the Company, commencing a close personal relationship with an employee at the same location or different location within the Eagers Automotive Group, engaging in a close personal relationship with an employee of a competitor company, or engaging in secondary employment that requires excessive hours or working times that may increase the risk of fatigue while working for the Company.

11.4 This provision is not intended to unreasonably prohibit you from engaging in other employment but to protect the legitimate interests of the Company and the Eagers Automotive Group.

12 Media Relations

12.1 During your employment, you must not, without the express written consent of the Company Secretary, make any public statement (including via social media) about, or disclose to any representative of the media, any information of any nature whatsoever relating to the Company or the Eagers Automotive Group, or any clients, contractors, employees or customers of the Company or the Eagers Automotive Group.

12.2 Following the termination of your employment, you must not:

- a) make any representation that you are in any way connected with or interested in the Company or Eagers Automotive Group (including statements on social media that you are a current or former employee);
- b) provide any media comment, whether directly or indirectly, relating to the affairs or conduct of the Company or Eagers Automotive Group.

13 Social Media

13.1 Engagement in personal social media activities should be minimised during work time and must not impact on the performance of your role.

13.2 In engaging in social media activities, you must ensure your actions do not:

- a) conflict with your duties to the Company or the Eagers Automotive Group;
- b) breach the Company's policies (including but not limited to the Employee Handbook, as amended or replaced from time to time); or
- c) harm the goodwill and/or reputation of the Company or the Eagers Automotive Group.

13.3 For the purposes of this clause, "social media" refers to any online blog, forum, chat room, instant messaging and social networking sites such as Instagram, Facebook, Twitter, LinkedIn, Snapchat, WhatsApp, Messenger and YouTube, as well as all other similar sites, communications and activities.

14 Image Consent

14.1 During your employment you may attend work related tasks, activities and events where photographs, videos, voice or other recordings may be taken of you, or interviews conducted with you, for Company and employment purposes including promotion, advertising, marketing and corporate reporting, both internally and externally (i.e. publicly), in print or web-based, including on the Company's website and social media platforms. You consent to the use and/or disclosure of your image, voice or likeness, and any attributions for these purposes, or any other purpose advised of at the time of collection, unless you let the Company know in writing otherwise (i.e. that you do not consent, for example, because of personal safety concerns).

14.2 For clarity, it is your responsibility to notify the Company should your circumstances change such that you know longer consent to the use or disclosure of your image internally, externally, or both, and provide as much information as may be necessary for the Company to identify the relevant images (or types of images) to which you no longer consent.

14.3 The Company acknowledges that your image, voice or likeness is personal information and will be managed in accordance with the Company's Privacy Policy.

15 Workplace Health, Safety and Environment (WHSE) Obligations

15.1 At all times during your employment, you have a duty of care for the safety of both yourself and others and are required to comply with all relevant workplace health and safety requirements and Company policies to ensure a safe and healthy workplace for yourself, fellow employees and visitors.

15.2 Throughout the term of your employment, you are required to:

- a) report and where possible take immediate action to address unsafe acts, conditions, equipment or behaviours;

- b) report as soon as possible to management any accidents, incidents, near misses or hazards;
- c) report WHSE concerns and improvement ideas to your Health and Safety Representatives, Safety Committee Member, Manager, Supervisor or Team Leader and discuss these issues at toolbox meetings;
- d) be accountable and work in a healthy, safe and friendly manner, looking out for the safety of yourself and others. This includes the proper use of personal protective equipment as required, if supplied to you for use in the course of your role;
- e) understand your responsibilities and be part of a positive health and safety culture;
- f) refrain from any conduct that is offensive, intimidating or humiliating to others;
- g) ensure that any approved secondary employment does not have a negative impact on your health and safety, particularly fatigue;
- h) comply with the policies, procedures, rules and regulations of the Company and the Eagers Automotive Group and cooperate with Supervisors and Managers on implementation of risk management processes;
- i) participate in Drug and Alcohol testing (including random testing) in accordance with the Drug and Alcohol Policy. You consent to this requirement and the results of the test being released to the Company;
- j) advise the Company as soon as practicable if you suffer a medical condition or illness, or are prescribed medication that will or may prohibit or limit your ability to safely perform the duties associated with your position in the ordinary course of day to day activities; and
- k) if required by the Company, attend and undertake an independent medical examination by a medical practitioner nominated by the Company. You consent to the medical practitioner releasing the results of the examination to the Company.

16 Medical Examination

If at any time the Company has any concerns about your capacity to perform the duties of your role due to illness or injury, you agree that if requested by the Company:

- a) you will attend and undertake an independent medical examination by a medical practitioner nominated by the Company, at the Company's expense, and you consent to the medical practitioner releasing the results of the examination to the Company;
- b) you will provide your written consent to the disclosure of your medical records by your medical or health practitioner to the Company; and
- c) you will authorise the Company to discuss your rehabilitation needs with your medical or health practitioner and/or the medical practitioner nominated by the Company under paragraph (a) above of the *Medical Examination* clause.

17 Company Policy and Procedures

You are required to remain familiar with and comply with the policies, procedures and practices of the Company and the Eagers Automotive Group that are in place from time to time. You acknowledge that the policies, procedures and practices may be varied, replaced or discontinued from time to time at the absolute discretion of the Company or the Eagers Automotive Group and that they are not incorporated as terms of this Agreement. Failure to comply with the policies, procedures and practices of the Company and the Eagers

Automotive Group may result in disciplinary action being taken against you, up to and including dismissal.

18 Remuneration

- 18.1 The Company will pay you the Annual Salary outlined in the Schedule.
- 18.2 Your Annual Salary will be paid fortnightly in arrears, less applicable tax, into your nominated financial institution account.
- 18.3 The Company may from time to time review your Annual Salary and may in its absolute discretion increase your Annual Salary. A review does not however guarantee an increase in your Annual Salary.
- 18.4 Any payments made to you by the Company, including the Annual Salary and any commission or bonus payments you receive, are paid in full satisfaction of:
 - a) any additional hours that you may be required to work to meet the requirements of your role; and
 - b) the Minimum Entitlements outlined in the Schedule.

19 Superannuation

- 19.1 The Company will pay into a complying Superannuation fund on your behalf the amount required to meet its superannuation guarantee obligations up to the “maximum contribution base”, which is set by the Australian Tax Office each year.
- 19.2 You may salary sacrifice some, or all of your future earnings into an eligible superannuation fund.
- 19.3 You are required to complete a Superannuation Fund nomination form upon commencement. If this form is not provided, the Company will make contributions on your behalf to the applicable Superannuation Fund in accordance with legislation.
- 19.4 It is your responsibility to ensure that the maximum allowable contribution is not exceeded in order to prevent a liability for excess tax contributions.

20 Public Holidays

- 20.1 You will be entitled to be absent on a day that is a public holiday in the location outlined in the Schedule.
- 20.2 Where there are genuine operational requirements, the Company may request you to work on a public holiday, following the provision of reasonable notice and consultation.
- 20.3 Where you agree to work on a public holiday, you and the Company may agree to substitute that day for another day that is then treated as a public holiday.

21 Leave Entitlements

- 21.1 You will be entitled to leave, including annual leave, personal/carer's leave, compassionate leave, long service leave, community service leave, domestic violence leave and parental leave in accordance with applicable legislation.
- 21.2 The Company may direct you to take leave in accordance with the Company's policies and/or applicable legislation, including if you have accrued an excessive amount of leave or during a period when the Company's operations are shut down or operating at a reduced capacity.

- 21.3 You must comply with all Company directions and policies regarding taking leave, including with respect to your application for, and notification and evidence of, any leave entitlement that you wish to access.

22 Overpayments and deductions

In the event of an overpayment made to you by the Company, you agree to take all necessary steps to enter into a lawful agreement with the Company to repay the monies owed by you, whether by way of a payment plan on acceptable terms to the Company, wage deductions or other means through mutual agreement.

23 Company Vehicles and Vehicle Allowance

- 23.1 If the Company provides you with a motor vehicle to assist you in the performance of your role, this will be outlined in the Schedule. If you are provided with a Company vehicle it is assumed that you will also use the vehicle for private use (in addition to work-related use), unless you notify the Company in writing that you will not be utilising the vehicle for private use.
- 23.2 Whenever you drive a vehicle during the course of your employment or are in control of a Company vehicle, you are expected to:
- a) Drive in a responsible and courteous manner;
 - b) Ensure the registration of the vehicle is current;
 - c) Ensure that you operate the vehicle in line with applicable law;
 - d) Ensure the vehicle is maintained in a clean and tidy condition;
 - e) Not alter the vehicle without permission;
 - f) Only permit another person to drive the vehicle if you have the Company's prior approval;
 - g) Inform appropriate personnel of any vehicle maintenance or repair requirements;
 - h) Maintain the vehicle's service records;
 - i) Report any vehicle damage, however slight, as soon as possible to your Manager so that repairs can be arranged; and
 - j) Return the vehicle to the dealership if and when required.
- 23.3 Company vehicles may only be used for Company and private use in accordance with this Agreement, unless prior written consent is obtained for the vehicle to be used for another purpose from an Executive General Manager. The Company does not permit the use of Company vehicles for personal gain including for the purposes of other employment, contracting arrangements and/or other business purposes (including ridesharing arrangements such as Uber, Didi or Ola).
- 23.4 If you are provided with a Company vehicle and you do not notify the Company in accordance with the *Company Vehicles and Vehicle Allowance* clause that you will not use the vehicle for private use:
- a) You may be required to contribute towards the costs incurred by the Company as a result of your private use of the vehicle.
 - b) If you are required to contribute towards the costs incurred by the Company as a result of your private use of the vehicle, the contribution amount will be outlined in the

Schedule **(Vehicle Contribution Amount)**.

- c) You agree to and authorise the Vehicle Contribution Amount being deducted from your wages on an ongoing basis.
 - d) The Company may vary the Vehicle Contribution Amount within reason, taking into account the costs incurred by the Company as a result of your private use of the vehicle, by giving you 30 days' notice in writing.
 - e) If you are required to contribute towards the costs incurred by the Company as a result of your private use of the vehicle and fail to do so without reasonable explanation, the Company may in its absolute discretion withdraw your right to use the vehicle for private use.
- 23.5 If you are in charge of a Company vehicle that is involved in any kind of accident or otherwise sustains significant damage during your private use of the vehicle and it is determined that you are at fault for causing the accident or damage, you may be required to reimburse the Company for the cost of any insurance excess incurred by the Company as a result of the accident or damage. Any decision to require you to reimburse the Company for an insurance excess will be made by an Executive General Manager of the Company, and you will be provided a minimum of 30 days' written notice of the requirement to reimburse the Company.
- 23.6 The Company may following consultation with you withdraw any Company vehicle provided to you. In circumstances where a breach of this clause or any direction or policy of the Company in relation to the use of the vehicle occur, then the Company reserves its right to withdraw any Company vehicle at its absolute discretion. Where a Company vehicle is withdrawn, and you were utilising the vehicle for private use and contributing the Vehicle Contribution Amount, the Company may in its discretion provide you with a vehicle allowance in lieu of a Company vehicle.
- 23.7 If you are required to use your personal vehicle in the performance of your duties, the Company will pay you the Vehicle Allowance outlined in the Schedule in full satisfaction of all running and maintenance costs associated with using your vehicle in the performance of your duties including, but not limited to:
- a) Insurance;
 - b) Maintenance costs;
 - c) Operating/running costs.

24 Company Equipment

- 24.1 You may be provided with Company equipment to assist you to perform your duties. You must use this equipment, and any other Company property provided during the course of your employment, in accordance with Company policy.
- 24.2 You are expected to maintain any Company property provided to you in reasonable working order and clean condition.
- 24.3 Company property is provided to assist with enabling you to complete your duties and should not be used for personal use unless outlined in the Schedule or previous permission has been obtained from the Company.

25 Stand Down

- 25.1 If an event occurs beyond the Company's control, which requires the Company to reduce its services and/or sale of goods and results in the Company requiring fewer employees for its

operations, the Company will consult with you for the purpose of exploring reasonable and available alternatives to avoid the full stand down of employees without pay (which may include reducing your work hours or work days).

25.2 Provided consultation has occurred in accordance with the *Stand Down* clause, if there are no other reasonable or viable options, the Company may:

- a) stand you down with pay;
- b) direct you to work reduced hours or days, with a corresponding reduction in pay; or
- c) stand you down without pay.

26 Workplace Surveillance

26.1 The Company reserves the right, where substantive reason is present to undertake monitoring of computer and network use by employees, including to ensure compliance with relevant laws and company policies. As part of this monitoring, the Company may access, monitor and record any communication or information developed, used, received, stored or transmitted by you using the Company's resources.

26.2 The Company's dealership precincts, workshops and offices may be fitted with continuous or intermittent video surveillance cameras. Whilst the cameras are mainly used for security purposes you should be aware that they may also be used in respect of matters related to your employment.

26.3 Where your role requires you to interact with our customers via telephone, calls to and from Company telephones (including mobiles) may be recorded and monitored. You consent to conversations you are party to being recorded, accessed, monitored and listened to by the Company. You also consent to the recordings being utilised by the Company (including publication or communication) for any lawful purpose. Whilst the recording of calls is mainly used for quality assurance and training purposes and to protect our employees by maintaining a record of interactions with our customers, you should be aware that they may also be used in respect of matters related to your employment.

27 Confidential Information

27.1 During your employment you:

- a) must not without the prior written consent of the Company, disclose or use any Confidential Information except if the disclosure or use is required in the proper performance of your duties or to the extent you are required to disclose information by law or on the order of any regulatory body; and
- b) must take all reasonable and necessary precautions to maintain proper and secure custody of all Confidential Information and prevent the use or disclosure of the Confidential Information by third parties.

27.2 Following the termination of your employment you must not disclose or use Confidential Information, except to the extent you are required to disclose information by law or on the order of any regulatory body.

27.3 'Confidential Information' includes, without limiting its ordinary meaning:

- a) trade secrets of the Company or a Group Company;
- b) information about the business and affairs of the Company or a Group Company such as information related to products and services offered, financial accounts and reports, marketing and/or strategy plans, client proposals, sales plans, client prospects,

information about fees, pricing information, supplier lists, research, financing, inventions, designs, procedures or processes, security information, sales and training materials, and operational information and methods;

- c) information about customers of the Company or a Group Company, such as their specific requirements, arrangements and past dealings with the Company or a Group Company;
- d) Personal Information of our customers, including names and addresses, dates of birth, licence and/or passport information, credit information, customer lists, business cards and diaries, calendars or schedules;
- e) employee records and any personal identifiable information of any employee of the Company or a Group Company;
- f) computer databases and computer software used by the Company or a Group Company; and
- g) all other information obtained from the Company or a Group Company or obtained in the course of your employment with the Company, that is by its nature confidential, whether oral, written or recorded electronically and including all copies or extracts, known to you or in your possession or control.

27.4 'Personal Information' has the meaning given to that term in the *Privacy Act 1988* (Cth).

28 Intellectual Property

- 28.1 You acknowledge that the rights to and subsisting in all Intellectual Property will be the exclusive property of the Company.
- 28.2 You assign irrevocably to the Company your entire (if any) right, title, interest in and to all Intellectual Property, including all ownership rights, copyright and the exclusive right to develop, make, use, sell, license or otherwise benefit from any information, discovery, process or other form of knowledge conceived, made or improved by you during your employment.
- 28.3 You agree to promptly do all things necessary to assign those rights to the Company, including, without limitation, to execute on demand, at the Company's expense, all documents that may be desirable to secure to the Company the best copyright, patent or other protection in Australia and elsewhere and/or rights relating to such Intellectual Property.
- 28.4 You will promptly and fully disclose to the Company any Intellectual Property developed by you or known by you to have been developed by any other employee of the Company. Any such creation, conception or improvement by you will be deemed to be a work made in the scope of and during the course of your employment.
- 28.5 During and after your employment, you must not use or disclose any Intellectual Property except as required to discharge your duties to the Company.
- 28.6 You must not act in any way during your employment that infringes the intellectual property rights of any third party, including previous employers. Whenever you produce work in the course of your employment that contains intellectual property owned by a third party, you must obtain all necessary consents and licences from that third party for use of that intellectual property.
- 28.7 In relation to any moral rights that may arise by operation of the *Copyright Act 1968* (Cth) in respect of any works or other subject matter created by you in the course of your employment (the **Works**), you irrevocably and unconditionally consent to the Company and any person licensed or authorised by the Company making any use of the Works and the copyright in them as the Company thinks fit, including use that, but for the consent, would or

might infringe those moral rights, such as making additions or alterations, or publishing or distributing the materials under the name of the Company or any of its directors, without needing to identify you as the author of the Works.

28.8 You agree that this consent extends to any use that would or might, apart from this consent, infringe any moral rights or similar non assignable personal rights that you may have in connection with the Works in Australia or anywhere in the world.

28.9 'Intellectual Property' means intellectual property of any kind including, without limitation:

- a) plans, concepts, strategies and business processes that you develop or improve during your employment; and
- b) an invention, improvement, discovery, secret process, trade mark, service mark, copyright work, design, patent, know-how and any other intellectual property right throughout the world that is:
 - (i) related to or connected with the Company or a Group Company or a service of the Company or a Group Company; and
 - (ii) invented, created, produced or conceived by you (whether alone or jointly with another person) in the course of your employment.

29 Termination of Employment with notice

29.1 Either you or the Company may end your employment at any time by giving written notice to the other party of the Notice Period outlined in the Schedule, or such longer period as required by law.

29.2 On termination by either party, the Company may at its absolute discretion, at any time during the notice period:

- a) bring your employment to an immediate end and pay your base salary (or any greater amount required by law) in lieu of the balance of the Notice Period;
- b) require you not to attend for work at any premises of the Company or a Group Company;
- c) require you not to have any contact with any employees, customers or clients of the Company or a Group Company;
- d) direct you to perform meaningful alternative duties, which may include less senior or significant duties, or not to perform any duties for the Company; and
- e) suspend or terminate your access to its information systems.

30 Summary Dismissal

30.1 The Company may immediately terminate your employment by notice to you in writing if in the Company's opinion you at any time:

- a) engage in serious, wilful, persistent or gross misconduct;
- b) breach a fundamental term of your employment, including failure to satisfy your obligations under any applicable legislation;
- c) commit an act of fraud or dishonesty;
- d) engage in any conduct which, in the reasonable opinion of the Company, might tend to injure the reputation or business of the Company or a Group Company;

- e) engage in sexual harassment;
- f) fail or refuse to comply with any lawful direction given to you by the Company through its authorised representative;
- g) wilfully neglect to perform the duties and responsibilities of your position.

31 Obligations on the termination of your employment

- 31.1 You will, on or before the last day of your employment, repay any amount owed to the Company. If on the last day of your employment any amount that you owe to the Company remains unpaid, you will sign any authorisation required and do any other thing necessary to enable the Company to deduct the unpaid amount from any final payment made to you.
- 31.2 On termination of your employment for any reason or whenever requested by the Company, you must:
- a) immediately return to the Company all property, documents and items relating to the business of the Company or any Group Company that you have in your possession or control. This includes, but is not limited to, any car, equipment (including tablets and mobile telephones), uniforms, papers, keys, reports, computers, information, programs, records and documents, Intellectual Property, Confidential Information and other information, in whatever form, relating in any way to the Company or any Group Company or the customers, clients or suppliers of the Company or any Group Company;
 - b) irretrievably delete any Confidential Information and Intellectual Property stored on any personal computer or storage device; and
 - c) notify the Company of the whereabouts of any other Confidential Information, Intellectual Property or Company property that was but is no longer in your possession.
- 31.3 This clause *Obligations on the termination of your employment* and clauses *Media Relations*, *Confidential Information*, *Intellectual Property*, and *Protection of the Company's legitimate business interests* survive the termination of your employment. To avoid doubt, this survival clause allows the Company to enforce the obligations set out in this clause clauses *Media Relations*, *Confidential Information*, *Intellectual Property*, and *Protection of the Company's legitimate business interests* notwithstanding any breach allowing you to terminate this Agreement.

32 Protection of the Company's legitimate business interests

32.1 General

- a) For the purposes of your employment, you will have access to Confidential Information and Intellectual Property of the Company and various Group Companies and you will maintain and develop a close professional relationship with the clients, customers and suppliers of the Company and various Group Companies (each a **Business Partner**) as well as the employees and contractors of the Company and various Group Companies.
- b) You acknowledge that:
 - (i) the undertakings in clause *Restrictions after employment* are reasonable and necessary for the protection of the legitimate business interests of the Company and Group Companies; and
 - (ii) damages alone would be an insufficient remedy for any breach by you of clause *Restrictions after employment* and the Company will be entitled to obtain

injunctive relief restraining you from any breach of clause *Restrictions after employment*

32.2 ***Restrictions after employment***

- a) For a period of six (6) months after the termination of your employment, you covenant in favour of the Company and each Group Company that you will not, directly or indirectly:
 - (i) solicit or entice away or endeavour to solicit or entice away from the Company or a Group Company any employee or contractor of the Company or a Group Company with whom you had material dealings during the last 12 months of your employment; or
 - (ii) solicit or entice away or endeavour to solicit or entice away from the Company or a Group Company any Business Partner with whom you had material dealings during the last 12 months of your employment.

33 **Miscellaneous**

33.1 This Agreement:

- a) contains the entire agreement of the parties with respect to its subject matter;
- b) sets out the only conduct, representations, warranties, covenants, conditions, agreements or understandings (collectively **Conduct**) relied on by the parties; and
- c) supersedes all earlier Conduct by or between the parties in connection with your employment.

33.2 If any provision of this Agreement or its application is or becomes invalid or unenforceable then the remaining provisions will not be affected and will remain valid and enforceable to the extent permitted by law.

33.3 You consent to notices in respect of any matter under this agreement, being provided and received by electronic communication including email.

33.4 You acknowledge and agree that your obligations under this Agreement are given for the benefit of the Company and each Group Company. The Company holds the benefit of this Agreement for itself and on trust for each Group Company.

33.5 This Agreement is governed by the state in which you are employed. The parties submit to the non-exclusive jurisdiction of courts exercising jurisdiction there with respect to any legal proceedings arising out of or in connection with this Agreement or your employment.

33.6 No failure to exercise and no delay in exercising any right, power or remedy under this Agreement will operate as a waiver. Nor will any single or partial exercise of any right, power or remedy preclude any other or further exercise of that or any other right, power or remedy.

33.7 This Agreement may be amended only by a further agreement executed by both parties.

The Company offers employment to the Employee on the terms outlined in this Agreement.

Signed electronically for and on behalf of the Company

Ryan Cox

Head of Data Intelligence

Ryan Cox

Name in full

08 July 2026

Date

By signing this Agreement, the Employee acknowledges having read and understood the terms of employment as outlined in this Agreement and accepts the Company's offer of employment on the terms outlined in this Agreement.

Accepted electronically by the Employee

Monika Raghuwanshi

Employee Signature

Monika Raghuwanshi

Name in full

08 July 2026

Date

SCHEDULE	
Employing Entity:	APE Cars Mgmt Pty Ltd, ABN 39 632 136 906 5 Edmund Street, Newstead QLD 4006
Employee:	Monika Raghuwanshi, of 23/68 Bellevue Terrace St Lucia, QLD 4067
Position:	Business Intelligence Architect
Manager:	Head of Data Intelligence
Employment Status:	Full Time
Hours of Work:	An average of 38 ordinary hours per week rostered in accordance with business needs.
Commencement Date of this Agreement:	24 August 2026 As you are a new employee, no previous service will be recognised (including any period/s of prior employment with the Group).
Location:	Business Intelligence QLD 3 Hudd Street, Bowen Hills QLD 4006
Probation Period:	Your employment is subject to the satisfactory completion of a 6-month probationary period.
Notice Period:	In accordance with the National Employment Standard relating to Notice of Termination in the Fair Work Act 2009 (Cth) (which will vary depending on your length of continuous service and age).
Annual Salary:	\$ 165,000.00 per annum (exclusive of superannuation)
Company Computer:	The Company will provide you with a digital device for your daily work-related use. The care and security of this computer shall be your direct responsibility.
Fair Work Ombudsman Fair Work Information Statement	Fair Work Information Statement